

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: October 30, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING MOTION FOR CONFIDENTIAL TREATMENT

On October 10, 2023, Respondent SM Line Corporation filed a motion under 46 C.F.R. § 502.5(b) seeking confidential treatment of portions of its motion for leave to file a third-party complaint. In support of its motion, Respondent states that the agreements attached to the motion for leave as Exhibits A-D are subject to confidentiality provisions that prevent the disclosure of their terms, including the identity of the parties to the agreements. The agreements also contain information regarding contractual rates, disclosure of which would damage the commercial interests of the parties. Complainant did not file an opposition to the motion.

Respondent has shown good cause for confidential treatment by demonstrating that the motion for leave and exhibits contain commercial information pursuant to 46 C.F.R. § 502.141. The motion for confidential treatment did not comply with 46 C.F.R. § 502.71(a) because it did not state what attempt was made to confer with the opposing party to determine whether the motion was opposed. **The parties are reminded that the duty to confer applies to all non-dispositive motions – future motions that do not comply with the rule may be denied.**

For the foregoing reasons, the motion for confidential treatment is **GRANTED**. The Office of the Secretary is requested to treat the designated information in the motion for leave to file a third-party complaint, in addition to the exhibits, as confidential.

Alex Michael
Chintella

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Michael Chintella
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Alex M. Chintella
Administrative Law Judge